

the founder himself has not otherwise given directions, for in general the will of the settlor, where explicit, must be strictly followed; as if the terms of the endowment be that the charity estates shall be *let only for twenty-one years*, the trustees, though satisfied that leases for ninety-nine years would be more beneficial, could not make such a deviation from the directions of the trust *without the sanction of the Court*. It was said on one occasion, with reference to such variations from the founder's intention, that the Court itself could not give a good title to the lessee, but that it required the authority of an Act of Parliament (*c*). It is plain, however, that there is a wide distinction between a deviation from the founder's intention as to the *objects* of the charity, and a deviation from the directions as to *management*, which were no doubt originally meant to be governed by circumstances.

60. **Improvements by lessees.**—When there has been no actual fraud, and the lessee or assignee of the lease is ejected after having laid out money in the permanent improvement of the property, the Court will direct an inquiry to what extent the charity estate has been benefited, and will allow the holder of the lease the amount of the benefit found (*d*).

[*547] *61. **Late Acts.**—By the Charitable Trusts Acts the Commissioners of Charities are empowered to authorise the grant by charity trustees of *building, repairing, improving, mining or other leases* (*a*), and the trustees are restricted from granting *without* the sanction of the Commissioners “any lease *in reversion* after more than *three years* of any existing term, or for any *term of life*, or in consideration wholly or in part of *any fine*, or for *any term of years exceeding twenty-one years*” (*b*).

[62. **Agricultural Holdings Act.**—The powers conferred by the Agricultural Holdings (England) Act, 1883, on a land-

(*c*) Attorney-General v. Mayor of Rochester, 2 Sim. 34.

(*d*) Attorney-General v. Day, V. C. Knight Bruce, March 9, 1847; and see Attorney-General v. Green, 6 Ves. 452; Attorney-General v. Kerr, 1 Beav. 420; Swan v. Swan, 8 Price,

518; Attorney-General v. Balliol College, 9 Mod. 411; Savage v. Taylor, Forr. 234; Shine v. Gough, 1 B. & B. 444.

(*a*) 16 & 17 Vict. c. 137, ss. 21, 26; 18 & 19 Vict. c. 124, s. 39.

(*b*) 18 & 19 Vict. c. 124, s. 29.